

(1998) 62 Cal. App. 4th 981, 984, n. 2.) Here, given the ruling on the demurrer, the motion to strike is moot.

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CASE #	CASE NAME	HEARING NAME
CVME2604520	GAME CLOUD NETWORK, INC VS KIRK	PLAINTIFF'S MOTION TO DISMISS COMPLAINT

Tentative Ruling: Motion to Dismiss or Stay on forum non convenient grounds is denied. Plaintiff is ordered to complete service and file a Proof of Service with the Court within 30 days of this order. OSC for failure to comply with service order set on 10-22-26.

Plaintiff Game Cloud Network, Inc. ("Plaintiff") alleges that Defendant Daniel Kirk ("Defendant") exploited Plaintiff by advancing multiple short-term loans between 2020 and 2022 carrying cash and equity returns that exceeded California's usury limit of 10%. Plaintiff alleges that Defendant advanced a total of \$75,000 and now claims more than \$3 million in both cash and equity. Plaintiff further alleges that the effective rate of over 262% per annum renders the interest provisions void and unenforceable. The operative Complaint, filed 2/27/26, asserts a single claim for declaratory relief. It seeks a determination that the agreement's interest provisions are usurious and void.

Defendant Kirk subsequently filed an action in Nevada on 3/18/26. That action names additional parties, i.e., Four Floors LLC, Aaron Baker, Seismic Capital Company, LLC, Eric White, and Alice Neuhauser. There, Defendant alleges claims for breach of contract, breach of the implied covenant of good faith and fair dealing, unjust enrichment, promissory estoppel, fraudulent inducement, and fraudulent misrepresentation arising from the same core conduct and transaction. On 8/5/26, the Nevada court stayed its action pending resolution of this first-filed California action.

Now, Defendant Kirk moves to dismiss the Complaint, arguing that Nevada is a suitable alternative and more convenient forum. It argues that Defendant Kirk is a Nevada resident, that Plaintiff solicited and accepted debt financing from Defendant and Four Floors LLC in Clark County, that the transaction and funds originated from Nevada, and the Nevada action includes all relevant participants and claims arising from the transaction. Defendant alternatively requests an OSC regarding Plaintiff's failure to serve Defendant within 60 days.

In opposition, Plaintiff argues the Nevada court has already stayed its own proceeding pending resolution of this California case, so it cannot be deemed a presently "suitable" forum. Plaintiff also argues that it operates its business in California, that the relevant third-party witnesses are in California, and that California has an interest in applying its usury laws. As to service, Plaintiff declares that it did not receive the endorsed copy of the complaint and summons until 4/21/26. Plaintiff thereafter attempted to locate Defendant, whose reported Nevada address allegedly is a commercial mailbox address and has been difficult to locate and serve.

In reply, Defendant argues that the Nevada stay does not make Nevada unsuitable. Defendant asserts that only Nevada can resolve the entire case because all participants